(§ 583.1 of this title) dealing with conflicts in interests and representative activities before an agency of the Department of the Army.

(f) *Rule 6, Hearings and nature thereof.* (1) The appellant, if he so desires, will be accorded a full and complete hearing at which he may offer the testimony of witnesses and confront and cross examine the witnesses for the Government. Hearings will be as informal as may be reasonably allowable and appropriate under all the circumstances. The contractor and contracting officer or their representatives may offer at a hearing such evidence or argument as they deem appropriate, subject however to the exercise of reasonable discretion by the presiding member, in supervising the extent and manner of presentation of such evidence and argument. Letters or copies thereof, affidavits, or other evidence, not ordinarily admissible under the generally accepted rules of evidence, may be received in evidence in the discretion of the presiding member. The weight to be attached to evidence presented in any particular form will be determined by the Board in the exercise of reasonable discretion under all the circumstances of the particular case. The parties may, by stipulation in writing filed with the Board, agree upon the facts or any portion thereof involved in the appeal, and the stipulation may be regarded and used in evidence at the hearing; the parties may also stipulate the testimony that would be given by a witness if the witness were present. The Board may, however, in such cases, require additional evidence.

(2) Also, in the discretion of the Board, if the appellant does not desire a hearing, he will be accorded a conference with one or more members of the Board. Such a conference is not for the purpose of introducing any new matter into the record but may be utilized by an appellant to explain or argue matters of record. If any new matter is introduced at such a conference, consideration of the appeal will be deferred until the contracting officer has been apprised thereof and has had an opportunity to reply. The contracting officer or his representative will be afforded the right to be present at such conference.

(g) *Rule 7, Submission without a hearing.* At the option of appellant the case may be submitted to and decided by the Board on the basis of the record supplemented as desired by either party by briefs or memoranda. Unless advised to the contrary within 15 days after notification of docketing, the Board will proceed with the case as submitted.

(h) *Rule 8, Hearing, where held.* Hearings will be held at the office of the Board unless it is otherwise ordered by the Board. The Board will consider a request for a hearing at another location if compelling reasons are timely presented.

(i) *Rule 9, Notice of hearing.* The appellant and the contracting officer will be given at least 15 days' notice of the time and place of hearing. Continuances will not be granted except upon written request and for good cause.

(j) *Rule 10, Absence of parties or counsel.* The unexcused absence of a party or his authorized representative at the time and place set for the hearing will not be the occasion for delay. In such event the hearing will proceed and the case will be regarded as submitted by the absent party.

(k) *Rule 11, Depositions, procedure for taking*—(1) *Reason for taking.* A deposition may be taken and read, whenever in the discretion of the Board or the presiding member it appears that the ends of justice will be served thereby.

(2) (i) *Before whom taken.* Depositions to be read in evidence before the Board or any Division thereof may be taken before and authenticated by any officer, military or civil, authorized by the laws of the United States or by the laws of the place where the deposition is taken, to administer oaths.

(ii) *Form and return of deposition to Board.* Each deposition should show the docket number and the caption of the proceeding, the place and date of taking, the name of the witness, and the party by whom called. The officer taking a deposition should enclose the original deposition and exhibits, in a sealed packet, with postage or other transportation prepaid, and forward the same to the Corps of Engineers Claims and Appeals Board.

(3) *Notice to take.* When either party desires to take a deposition, unless the parties shall stipulate as to the time when and place where the deposition is to be taken and the name of the officer before whom it is to be taken and the name and address of the witness, such party should give to the opposite party at least 15 days' notice of the time when and the place where such deposition will be taken and the name and address and official title of the officer before whom it is proposed to take the deposition, as well as the name of the witness. A deposition may be taken either upon written interrogatories or upon oral examination, as may be specified in the notice. If the deposition is to be taken upon written interrogatories, copies thereof should accompany the notice to take depositions. If the opposite party desires to submit cross interrogatories, the cross-interrogatories should be served upon the party giving the notice within 10 days from the receipt of the notice to take the deposition.

(4) (i) *Deposition not considered until offered.* Testimony taken by deposition will not be considered until offered and received in evidence.

(ii) *Introduction of deposition by opposite party.* A deposition taken by one party may be introduced by the opposite party, but the whole deposition must be offered unless otherwise stipulated by the parties or directed by the Board.

(l) *Rule 12, Examination of witnesses.* Witnesses before the Board or a designated member thereof will be examined orally, unless the facts are stipulated or the Board or designated member thereof shall otherwise order. The testimony of a witness is subject to the provisions of Title 18 U. S. C., secs. 287, 1001; and any other provisions of law imposing penalties for knowingly making false representations in connection with claims against the United States or in any matter within the jurisdiction of any department or agency thereof.

(m) *Rule 13, Copies of papers.* When books, records, papers, or documents have been received in evidence, a copy thereof or of such part thereof as may be material or relevant may be substituted therefor.

(n) *Rule 14, Withdrawal of exhibits.* After a decision has become final, the Board may, upon request, permit the withdrawal of original exhibits, or any part thereof, by the party entitled thereto.

(o) *Rule 15, Briefs.* All briefs will be filed within 20 days after conclusion of the hearing, or within such other period of time as may be allowed by the Board.

(p) *Rule 16, Transcript of proceedings.* Testimony and argument at hearings will be reported verbatim, unless the Board otherwise orders. Transcripts of the proceedings will be supplied to the parties at such rates as may be fixed by contract between the Board and the reporter. If the proceedings are reported by an employee of the Government, the contractor may receive transcripts upon payment to the Government at the same rates as those set by the independent reporter under contract to the Board.

(q) *Rule 17, Findings and decisions.* Findings and decisions of the Board will be made in writing, and authenticated copies thereof will be forwarded simultaneously to both parties. The rules of the Board and all final opinions and orders issued by the Board in the determination of cases shall be available to public inspection at the offices of the Board in Washington, D. C.

(r) *Rule 18, Motions for rehearing.* A motion for rehearing or reconsideration, if filed by either party, will set forth specifically the ground or grounds relied upon to sustain the motion, and will be filed within 20 days from the date of the receipt of a copy of the decision of the Board by the party filing the motion.

[Regs., May 26, 1955, ENGAC–12] (R. S. 161; 5 U. S. C. 22. Interpret or apply 62 Stat. 21; 41 U. S. C. 151–161)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 55–4665; Filed, June 10, 1955; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1158]

ALASKA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 792 OF MAY 4, 1908

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 792 of May 4, 1908, reserving certain lands in Alaska,

for use of the Signal Corps, U. S. Army, which was modified by Executive Order No. 7127 of August 6, 1935, is hereby revoked so far is it refers to lands in the U. S. Survey No. 1457 and No. 2285 at Salcha, Alaska. The area described contains 202.938 acres.

The lands shall not become subject to the initiation of any rights or to any disposition under the public land laws until it is so provided by an order of classification to be issued by an authorized officer of the Bureau of Land Management opening the lands to application under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. sec. 682a), as amended, with a ninety-one day preference-right period for filing such applications by veterans of World War II and the Korean conflict and other qualified persons entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

JUNE 1, 1955.

[F. R. Doc. 55–4668; Filed, June 10, 1955; 8:47 a. m.]

[Public Land Order 1162]

WYOMING

AMENDING PUBLIC LAND ORDER NO. 1077 OF FEBRUARY 25, 1955, WHICH REVOKED CERTAIN EXECUTIVE ORDERS

Public Land Order No. 1077 of February 25, 1955, appearing as Federal Register Document 55–1809 (20 F. R. 1311) of the issue of March 3, 1955, is hereby amended:

(1) By adding the following lands to the list of lands in paragraph three of Public Land Order No. 1077 which were included in the revocation made by that order:

SIXTH PRINCIPAL MERIDIAN

T. 41 N., R. 116 W.,
Sec. 30, E½NE¼;
Sec. 33, SW¼SW¼.
T. 42 N., R. 116 W.,
Sec. 32, lot 8;
Sec. 34, lot 7.

The tracts described contain 183.70 acres.

(2) And by deleting the E½NW¼ sec. 30, T. 41 N., R. 116 W., from paragraph three of the order.

The lands in sec. 33, T. 41 N., R. 116 W., are included in Phosphate Reserve No. 18 by Executive order of July 9, 1913, and in the Teton National Forest by the act of August 16, 1916.

No application for the released lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

This order shall not otherwise become effective to change the status of the released lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition, and selection, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

Veterans preference-right applications under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended, may be filed on or before 10:00 a. m., on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, filed on or before 10:00 a. m., on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries, regarding the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Cheyenne, Wyoming.

FRED G. AANDAHL,
Acting Secretary of the Interior.

JUNE 6, 1955.

[F. R. Doc. 55–4669; Filed, June 10, 1955; 8:47 a. m.]

TITLE 46—SHIPPING

Chapter II—Federal Maritime Board, Maritime Administration, Department of Commerce

Subchapter B—Regulations Affecting Maritime Carriers and Related Activities

[Gen. Order 61, 2d Rev., Supp. 1]

PART 221—DOCUMENTATION, TRANSFER OR CHARTER OF VESSELS

CITIZENSHIP DECLARATIONS BY OWNERS OR MORTGAGEES OF VESSELS OF THE UNITED STATES

General Order 61, 2d Revision (§ 221.11 *Citizenship declarations by owners or mortgagees of vessels of the United States as required by section 40, Shipping Act, 1916, as amended*) published in the FEDERAL REGISTER issue of March 9, 1955, 20 F. R. 1399, is hereby amended by adding the following new paragraph (d):

(d) Form MA–4560 (5–4–55), and in connection therewith, when appropriate, Form MA–4560–A (5–5–55), for execution by a corporation (specifically applicable to mutual insurance companies) not authorized to issue capital stock but in which the voting power is exercised by its members, shall read as follows:

Form MA–4560
(5–4–55)

U. S. Department of Commerce
Maritime Administration

OWNER OR MORTGAGEE OF VESSEL

(Section 40, Shipping Act, 1916, as amended)

U. S. C., Title 46, Sec. 838, 40 Stat. 902, 62 Stat. 212

DECLARATION OF OFFICER OF MUTUAL INSURANCE COMPANY *

I _____, of _____ declare that I am[1] _____ of the[2] _____ a corporation organized under the laws of the State of _____ with offices at[3] _____; that said corporation is the owner (or)[4] mortgagee of the vessel, or part thereof, or interest therein,[4] called _____ of _____, official number _____, gross _____ net _____,[5] built in 19__, at _____ as appears by _____ No. _____, issued at _____, 19__, surrendered[6] _____ that
(Give cause of surrender)
I am a citizen of the United States of America by birth, having been born at _____
(City)
_____, on _____ (or)[7]
(State) (Date of birth)
by naturalization before the _____
(Name of court)
for _____, on
(District, county, or State)
_____, having been issued
(Date naturalized)
Naturalization Certificate No. _____; that the president and managing directors of said corporation are citizens of the United States of America; that[4] the controlling interest (or)[4] seventy-five (75) per centum of the interest in said corporation is owned by citizens of the United States of America; said corporation is not authorized to issue stock, the ownership and control of said corporation being vested in the members of said corporation who have the exclusive voting power. The persons exercising the duties of managing directors of the corporation are called _____ and are the persons referred to herein as managing directors. The majority of the voting power (or) seventy-five (75) per centum of the voting power of said corporation is vested in citizens of the United States of America free from any trust or fiduciary obligations in favor of any person not a citizen of the United States of America; that through no contract or understanding is it so arranged that[4] the majority of the voting power (or)[4] more than twenty-five (25) per centum of the voting power of said corporation may be exercised, directly or indirectly, in behalf of any person who is not a citizen of the United States of America; that by no means whatsoever is[4] the control of said corporation (or)[4] the control of any

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*This declaration is to be taken whenever any bill of sale, mortgage, hypothecation, or conveyance of any vessel, or part thereof, or interest therein, is presented by a corporation to any collector of customs for recording.

[1] Insert "President," "Secretary," or "Treasurer," or any other duly authorized official thereof, as the case may be.

[2] Insert full corporate name of company.

[3] Insert business address of corporation.

[4] Strike out word or expression not appropriate.

[5] Insert other means whereby vessel became entitled to American registry, when appropriate.

[6] I. e., document now surrendered, or document last surrendered heretofore (U. S. C., Title 46, Sec. 808).

[7] Strike out reference to naturalization if party is native-born citizen.